

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

1. JASON GILLESPIE V. BARBARA GILLESPIE

24FL0722

On February 20, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders and school orders for the children. All required documents were served on February 24th.

Respondent filed and served a Responsive Declaration to Request for Order on March 26th, though it is unclear why as she is the one who filed the moving papers. There was an RFO lodged with the court by Petitioner on February 23rd however, according to the court's file that RFO was not filed and it is therefore, not pending before the court.

Petitioner has not filed a Responsive Declaration to Request for Order.

Only Respondent appeared at the Child Custody Recommending Counseling (CCRC) appointment on March 27th, therefore a report without recommendations was prepared and filed with the court.

The parties filed a request to be re-referred to CCRC which was granted and a new appointment was set for April 14th. Both parties attended the rescheduled CCRC appointment, however the CCRC counselor was once again unable to make any recommendations as Respondent refused to allow the children to speak with CCRC.

On May 12th, Respondent filed and served Respondent's Reply Declaration to CCRC Report.

After reviewing the filings, the court finds it necessary for CCRC to interview the children prior to making any changes in custody or visitation. The parties are re-referred to CCRC with an appointment on Tuesday, June 16th at 1:00 PM. The parties are ordered to make the children available to speak with the CCRC counselor. Neither party shall interfere with the counselor's interview of the children nor attempt to coach the children for their interview. Failure to abide by this order may result in sanctions. A review hearing is set to join with the already scheduled court trial on July 14, 2026. Parties are to include any supplemental information in their Statement of Issues and Contentions which is to be filed prior to trial in accordance with local rules.

TENTATIVE RULING #1: THE PARTIES ARE RE-REFERRED TO CCRC WITH AN APPOINTMENT ON TUESDAY JUNE 16TH AT 1:00 PM. THE PARTIES ARE ORDERED TO MAKE THE CHILDREN AVAILABLE TO SPEAK WITH THE CCRC COUNSELOR. NEITHER PARTY SHALL INTERFERE WITH THE COUNSELOR'S INTERVIEW OF THE CHILDREN NOR ATTEMPT TO COACH THE CHILDREN FOR THEIR INTERVIEW. FAILURE TO ABIDE

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BY THIS ORDER MAY RESULT IN SANCTIONS. A REVIEW HEARING IS SET TO JOIN WITH THE ALREADY SCHEDULED COURT TRIAL ON JULY 14, 2026. PARTIES ARE TO INCLUDE ANY SUPPLEMENTAL INFORMATION IN THEIR STATEMENT OF ISSUES AND CONTENTIONS WHICH IS TO BE FILED PRIOR TO TRIAL IN ACCORDANCE WITH LOCAL RULES.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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2. FRANK B. LAROSA V. MARIANNA LAROSA

PFL20180720

On February 25, 2026, Petitioner filed a Request for Order (RFO) requesting termination of spousal support and division of the proceeds of the sale of the community residence. All required documents were served electronically on February 26th, however this is a post-judgment request and therefore, service was required to comply with Family Code § 215.

Petitioner filed and served Points and Authorities Re: Waiver of Reimbursement Rights on March 12, 2026.

On May 8th, Respondent filed her Responsive Declaration to Request for Order, thereby waiving any defect in service. She filed her Income and Expense Declaration, her Declaration in Support of Respondent's Request for Attorney's Fees, and her Memorandum of Points and Authorities concurrently therewith. All documents were served on May 8th.

Petitioner filed and served his Reply Declaration of Attorney on May 15th. Respondent thereafter filed an Objection to Petitioner's Reply Declaration and Request to Strike Pleadings. She objects to the reply as untimely and she objects to the RFO on the basis that Petitioner failed to comply with California Rule of Court 5.92 by failing to file his Income and Expense Declaration with the RFO. Respondent asks the court to strike both pleadings.

Respondent's objection is sustained in part. The objection to the reply declaration is sustained and the motion to strike is granted. The objection to the RFO is sustained with regard to the request to modify spousal support only. Petitioner failed to file his Income and Expense Declaration at the time of filing his RFO therefore the court drops the support request from calendar. The remainder of the RFO may be reached on the merits.

Petitioner filed and served his Income and Expense Declaration on May 19th.

Petitioner asks the court to divide the sale proceeds of the community property residence equally after reimbursing him for his separate property contribution in the amount of \$274,529.52.

Respondent requests support arrears in the amount of \$56,100 plus \$8,886 in interest for a total amount due of \$64,986. She agrees to a payment of arrears from Petitioner's portion of the net proceeds of the sale of the residence but she opposes Petitioner's request for reimbursement of his alleged separate property contribution. Additionally, Respondent asks the court to appoint Stephanie Hailey as the listing agent for